

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

SENATE BILL NO. 2007
(Appropriations Committee)

AN ACT to provide an appropriation for defraying the expenses of the veterans' home; to create and enact a new section to chapter 37-15 of the North Dakota Century Code, relating to meals provided to employees of the veterans' home; to provide an exemption; to provide for a legislative management study; and to declare an emergency.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. APPROPRIATION. The funds provided in this section, or so much of the funds as may be necessary, are appropriated out of any moneys in the general fund in the state treasury, not otherwise appropriated, and from other funds derived from special funds and federal funds, to the veterans' home for the purpose of defraying the expenses of the veterans' home, for the biennium beginning July 1, 2025, and ending June 30, 2027, as follows:

	<u>Base Level</u>	<u>Adjustments or Enhancements</u>	<u>Appropriation</u>
Salaries and wages	\$20,582,989	\$1,815,877	\$22,398,866
New and vacant FTE pool	0	852,924	852,924
Operating expenses	6,061,325	1,207,368	7,268,693
Capital assets	<u>407,252</u>	<u>725,055</u>	<u>1,132,307</u>
Total all funds	\$27,051,566	\$4,601,224	\$31,652,790
Less other funds	<u>20,833,167</u>	<u>4,106,515</u>	<u>24,939,682</u>
Total general fund	\$6,218,399	\$494,709	\$6,713,108
Full-time equivalent positions	114.79	0.00	114.79

SECTION 2. ONE-TIME FUNDING - EFFECT ON BASE BUDGET - REPORT TO SEVENTIETH LEGISLATIVE ASSEMBLY. The following amounts reflect the one-time funding items included in the appropriation in section 1 of this Act which are not included in the entity's base budget for the 2027-29 biennium and which the entity shall report to the appropriations committees of the seventieth legislative assembly regarding the use of this funding:

<u>One-Time Funding Description</u>	<u>Other Funds</u>
Building maintenance	\$390,000
Resident garages and storage units	175,000
Equipment	<u>22,050</u>
Total	\$587,050

SECTION 3. NEW AND VACANT FTE POOL - LIMITATION - TRANSFER REQUEST. The veterans' home may not spend funds appropriated in the new and vacant FTE pool line item in section 1 of this Act, but may request the office of management and budget to transfer funds from the new and vacant FTE pool line item to the salaries and wages line item in accordance with the guidelines and reporting provisions included in House Bill No. 1015, as approved by the sixty-ninth legislative assembly.

SECTION 4. A new section to chapter 37-15 of the North Dakota Century Code is created and enacted as follows:

Meals provided to employees of the veterans' home.

In the event of a disruption of operations, the veterans' home may provide meals at a fair value or without a charge to employees of the veterans' home as required by the job assignments of the employees.

SECTION 5. EXEMPTION - LINE ITEM TRANSFERS - REPORT. Notwithstanding section 54-16-04, the director of the office of management and budget may transfer up to \$600,000 from special funds from the salaries and wages line item to the operating expenses line item in section 1 of chapter 7 of the 2023 Session Laws, during the period beginning with the effective date of this Act, and ending June 30, 2025, as requested by the veterans' home. The veterans' home shall notify the legislative council of any transfers made pursuant to this section.

SECTION 6. LEGISLATIVE MANAGEMENT STUDY - VETERANS' HOME FACILITIES. During the 2025-26 interim, the legislative management shall consider studying the usage of the veterans' home facilities. The study must consider any organizational changes necessary to increase resident census at the veterans' home, potential uses for unoccupied space, and federal requirements. The legislative management shall report its findings and recommendations, together with any legislation required to implement the recommendations, to the seventieth legislative assembly.

SECTION 7. EMERGENCY. Section 5 of this Act and the sum of \$175,000 appropriated from the Melvin Norgard memorial fund for resident garages and storage units in the other funds line item in section 1 of this Act are declared to be an emergency measure.

President of the Senate

Speaker of the House

Secretary of the Senate

Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2007 and that two-thirds of the members-elect of the Senate voted in favor of said law.

Vote: Yeas 47 Nays 0 Absent 0

President of the Senate

Secretary of the Senate

This certifies that two-thirds of the members-elect of the House of Representatives voted in favor of said law.

Vote: Yeas 92 Nays 1 Absent 1

Speaker of the House

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State